

procedure.tax — tranche 1

Amendments that can be applied now, without waiting for anything. 15 August 2026.

Sixteen of the thirty-three findings can be dealt with from material already verified. They are set out below as edits rather than as a review: what to find, what to change it to, and the finished text. Nothing here depends on a quotation I have not read.

The seventeen parked items are listed on the last page, each against the one thing that would release it. The Legislation folder is connected but every file in it is an iCloud placeholder, so nothing could be read from it yet.

What is in this tranche

#	Chapter	Edit
1	R1 Nature of the Tribunal's decision	Five corrections to rule 35, plus three new sub-points
2	X4 Penalties for late return	Replace the company tax return penalty figures
3	X4 Penalties for late return	Replace the VAT sub-section
5	Y1 Fraud offences	7 years to 14 years, plus a new section
6	B10 VAT registration	Two threshold tables
7	V14 Construction industry scheme	Five-year bar; new liability and penalty sections
8a	U3 Repayment supplement	New scope section at the head of the chapter
9	A10 Tax agents' duty of care	Holding entry on adviser registration — commences Tuesday
13	V12 PAYE	New umbrella companies section
16	X9 Special circumstances and suspension	Re-attribute Cox to the Upper Tribunal
18	X3 New penalties for no return	New scope and commencement section
25	V14 Construction industry scheme	VAT limb of the gross payment compliance test
26	Penalties Part	Slug collision and numbering
30	X6 Penalties for inaccuracy	Neutral citation typo
31	X10 Follower notices	Missing year in a citation
32	X3 and X4	Cross-reference for reasonable excuse

Findings 1, 2 and 9 are the ones with a deadline. 30, 31 and 32 take about two minutes between them.

1 · R1 Nature of the Tribunal's decision

RULE 35 — FIVE CORRECTIONS

Find the block quoting "(2) The Tribunal must provide to each party within 28 days after making a decision"

Do this

1. In **(2)**: for "~~within 28 days after making a decision ... or as soon as practicable thereafter~~" read "as soon as reasonably practicable after making a decision".
2. In **(3)**: delete the opening words "~~Unless each party agrees that it is unnecessary, the~~" and read "The".
3. Insert new **(3A)** after (3) — text below.
4. In **(5)**: for "~~within 28 days~~" read "within 14 days".
5. In **(6)**: for "~~within 28 days after receiving an application ... or as soon as practicable thereafter~~" read "as soon as reasonably practicable after receiving an application".

Then add the three sub-points below, and the cross-reference at R4.

NEW PARAGRAPH (3A), TO SIT INSIDE THE EXISTING QUOTATION

"(3A) Paragraph (3) does not apply where the Tribunal has given reasons for the decision, whether summary or full, orally at a hearing."

Amend the citation that closes the quotation to read: [\(FTT Rules, r.35, as amended by SI 2026/115 with effect from 2 March 2026\)](#)

THREE NEW SUB-POINTS, TO FOLLOW THE QUOTATION

- 14 days to apply for full written findings and reasons

The period was reduced from 28 days to 14 days by SI 2026/115 with effect from 2 March 2026. Because an application under r.35(4) is in practice the precondition of an application for permission to appeal under r.39, the shortened period is the operative deadline in any case where the Tribunal has issued a decision notice containing a summary of its findings only.

- No written findings and reasons where reasons given orally

The former route by which the parties could agree that findings and reasons were unnecessary has gone. In its place, r.35(3A) disapples the duty altogether where the Tribunal gave reasons orally at the hearing, whether in summary or in full. A party who wants a written statement in such a case must apply under r.35(4), and must do so within 14 days.

- Tribunal's own deadlines replaced by "as soon as reasonably practicable"

The fixed 28-day periods formerly imposed on the Tribunal by r.35(2) and r.35(6) were replaced with "as soon as reasonably practicable". There is accordingly no longer a date by which a party may expect the decision notice or the full statement, and no fixed period from which to measure delay.

[See S9: Excessive delay to decision](#)

CONSEQUENTIAL — ADD AT R4, UNDER THE EXISTING TIME LIMIT MATERIAL

- Time limit for requesting the reasons

The 56-day period under r.39 runs from the date the Tribunal sent the full written statement of findings and reasons. Where the decision notice contained only a summary, that statement must first be applied for under r.35(4), and the application must be made within 14 days of the decision notice. A failure to make that application in time is a distinct and earlier default from a late application for permission to appeal.

[See R1: Nature of the Tribunal's decision](#)

One check. The five amendments are certain — SI 2026/115 r.4, in force 2 March 2026. What I have not read is the consolidated rule 35, so the surrounding unamended words in (2) and (3) are those already on the page. Worth a glance against the judiciary's consolidated Rules when convenient, but the corrections themselves should go in now.

2 · X4 Penalties for late return — company tax return

REPLACE THE QUOTED FIGURES

LATE COMPANY TAX RETURN → "- Fixed penalty for initial default"

Do this. Replace the whole quotation with the text below, then add the two new sub-points. The tax-geared penalty in para 18 (10% / 20%) is unaffected.

REPLACEMENT

- Fixed penalty for initial default

"17(1) A company which is required to deliver a company tax return and fails to do so by the filing date is liable to a flat-rate penalty under this paragraph. It may also be liable to a tax-related penalty under paragraph 18.

(2) The penalty is—

(a) £200, if the return is delivered within three months after the filing date, and

(b) £400, in any other case.

(3) The amounts are increased to £1000 and £2000 for a third successive failure, that is, where—

(a) the company is within the charge to corporation tax for three consecutive accounting periods (and at no time between the beginning of the first of those periods and the end of the last is it outside the charge to corporation tax),

(b) a company tax return is required for each of those accounting periods,

(c) the company was liable to a penalty under this paragraph in respect of each of the first two of those periods, and

(d) the company is again liable to a penalty under this paragraph in respect of the third period." (FA 1998, Sch 18, para 17)

- Amounts doubled for filing dates on or after 1 April 2026

"(2) The amendments made by subsection (1)(a) and (b) have effect in relation to a failure to deliver a company tax return for which the filing date is on or after 1 April 2026." (FA 2026, s.265(2))

For a filing date before 1 April 2026 the penalties remain £100 and £200, increased to £500 and £1,000 for a third successive failure. The trigger is the filing date, not the date of the failure or of the penalty determination, so the two sets of figures will run alongside one another for as long as late returns for earlier periods are being dealt with.

- Power to vary the amounts by regulations

"(5) The Commissioners for His Majesty's Revenue and Customs may by regulations amend sub-paragraph (2) or (3) so as to increase or decrease the amount of a penalty for the time being specified in those sub-paragraphs.

(6) Regulations under sub-paragraph (5) may include transitional and saving provision.

(7) A statutory instrument containing regulations under sub-paragraph (5) which increase the amount of a penalty by more than is necessary to reflect changes in the value of money may not be made unless a draft of the instrument has been laid before and approved by a resolution of the House of Commons." ([FA 1998, Sch 18, para 17](#))

Sub-paragraphs (5) to (7) were inserted by FA 2026, s.265(1)(c). The affirmative procedure bites only on a real-terms increase; an inflation-only uprating may be made by negative instrument.

Confidence. The strongest item in the set. Para 17 as amended returned identically from two independent routes and matches, figure for figure, what s.265 says it substitutes.

3 · X4 Penalties for late return — the VAT sub-section

REPLACE THE VAT SECTION

VAT → "- Late VAT return or payment: default surcharge regime"

Do this. Replace the VAT section in full. The surcharge stays, demoted to a historic heading with its cut-off date.

REPLACEMENT

VAT

Late VAT return: points-based regime

For prescribed accounting periods beginning on or after 1 January 2023, a late VAT return attracts a penalty point under FA 2021, Sch 24, and a £200 penalty once the points threshold is reached. Late payment is dealt with separately under FA 2021, Sch 26. FA 2021, Sch 24 and Sch 26 were commenced for VAT by SI 2022/1278.

[See X3: New penalties for no return](#)

[See X5: Penalties for late payment](#)

- Sch 25 not commenced for VAT

The penalty for deliberately withholding information by failing to make a return, in FA 2021, Sch 25, was not commenced for VAT. A VAT case in which no return is delivered continues to be dealt with under FA 2007, Sch 24 and FA 2008, Sch 41.

Default surcharge (historic)

- Repealed for periods beginning on or after 1 January 2023

VATA 1994, ss.59 to 59B were omitted by FA 2021, Sch 27. The surcharge continues to govern prescribed accounting periods beginning before 1 January 2023, and remains relevant to assessments and appeals for those periods and to the proportionality authorities decided under it.

[VATA 1994, ss.59 - 59B \(as they had effect before 1 January 2023\)](#)

Late EC sales statement

[VATA 1994, s.66](#)

While you are in this chapter. The heading "New points based regime — See FA 2021, Sch 24" at the top of the GENERAL section is a bare link with no text under it. Replace it with a cross-reference to X3, which is where the regime is actually treated. And the proportionality authorities — *Total Technology* and *Trinity Mirror* — would be better moved to X1 than left in a historic section.

5 · Y1 Fraud offences

7 YEARS TO 14 YEARS

Each block quoting "a term not exceeding 7 years" or "not exceeding seven years"

Do this. In every sentencing quotation on the page, for "~~7 years~~" / "~~seven years~~" read "14 years" / "fourteen years". Then add the section below. FA 2024, s.32 raised the maxima across more than twenty enactments for offences committed on or after 22 February 2024.

NEW SECTION

MAXIMUM SENTENCES

Maxima doubled for offences committed on or after 22 February 2024

FA 2024, s.32 increased the maximum term of imprisonment on conviction on indictment from 7 years to 14 years across more than twenty enactments, including TMA 1970, CEMA 1979, VATA 1994 and FA 2003. The increase applies by reference to the date of the offence, not the date of charge, conviction or sentence.

- Offences affected

Provision	Offence	Before	From 22.2.2024
TMA 1970, s.106A	Fraudulent evasion of income tax	7 years	14 years
CEMA 1979, ss.50, 68, 170	Improper importation and exportation; fraudulent evasion of duty	7 years	14 years
VATA 1994, s.72(1), (3), (8)	VAT fraud	7 years	14 years
FA 2003, s.95	SDLT: fraudulent evasion	7 years	14 years

The table is not exhaustive: equivalent provisions in FA 1993, 1994, 1996, 1997, 2000, 2001, 2012, 2014, 2017 and 2021 were amended in the same terms.

- Straddling conduct

Where an indictment alleges a continuing course of conduct spanning 22 February 2024, the applicable maximum turns on when the offence charged was committed. Cheating the public revenue at common law is unaffected, the maximum for that offence already being life.

Gap worth filling while you are here. The VAT fraud entry is a bare cross-reference — "VATA 1994, s.72." — with no sentence stated, and CEMA 1979 is not covered at all.

6 · B10 VAT registration — thresholds

TWO TABLES

Rows currently reading "1 April 2017 to present"

Do this. Close the 2017 row and add a 2024 row to each table. The "to present" wording is what makes this an affirmative misstatement rather than an omission, so it is the important part of the edit.

REPLACEMENT

- Registration threshold

Period	Threshold
1 April 2017 to 31 March 2024	£85,000
1 April 2024 to present	£90,000

- Deregistration threshold

Period	Threshold
1 April 2017 to 31 March 2024	£83,000
1 April 2024 to present	£88,000

- Increase from 1 April 2024

The registration threshold in VATA 1994, Sch 1 was increased to £90,000 and the deregistration threshold to £88,000 with effect from 1 April 2024 by SI 2024/307, which also raised the Sch 1 forward-look exception threshold to £88,000 and the Sch 9ZA deregistration threshold for Northern Ireland acquisitions to £90,000. The thresholds are unchanged since.

Search the chapter for "£85,000" and "£83,000" — the Sch 9ZA tables will have the same problem.

7 and 25 · V14 Construction industry scheme

CANCELLATION, NEW LIABILITY REGIME, COMPLIANCE TEST

"- No re-registering for 1 year after cancellation", and "Compliance test"

Do this. Three edits. (1) Split the existing one-year sub-point into two, because the period now depends on which limb of s.66 was engaged. (2) Add the new liability and penalty sections. (3) Add the VAT limb to the compliance test. All in force from 6 April 2026 except the compliance test, which dates from 6 April 2024.

REPLACES THE EXISTING CANCELLATION SUB-POINTS

- Cancellation where s.62A or s.62B applies

"(3A) The Commissioners may at any time make a determination cancelling a person's registration for gross payment if—

(a) section 62A (payments made in the knowledge of deliberate failures to comply), or

(b) section 62B (returns made in the knowledge of deliberate failures to comply),

applies to the person.

(4) Where the Commissioners make a determination under subsection (3) or subsection (3A), the person's registration for gross payment is cancelled with immediate effect." (FA 2004, s.66)

- No re-registering for 1 year following cancellation under s.66(1)

"(6) Where a person's registration for gross payment is cancelled by virtue of a determination under subsection (1),

(a) the person must be registered for payment under deduction, and

(b) the person may not, within the period of one year beginning with the day on which the cancellation takes effect (see subsection (2) and section 67(5)), apply for registration for gross payment." (FA 2004, s.66(6))

- No re-registering for 5 years following cancellation under s.66(3) or (3A)

"(7) Where a person's registration for gross payment is cancelled by virtue of a determination under subsection (3) or subsection (3A),

(a) the person may, if the Commissioners think fit, be registered for payment under deduction, and

(b) the person may not, within the period of five years beginning with the day on which the cancellation takes effect (see subsection (4)) apply for registration for gross payment." (FA 2004, s.66(7))

The five-year period replaced one year with effect from 6 April 2026 (FA 2026, s.220). The distinction now matters: cancellation on the ordinary compliance ground under s.66(1) carries a one-year bar, while cancellation on the fraud or knowledge grounds under s.66(3) or (3A) carries five. The existing sub-point "- Minimum 1 year de-registration following outcome of appeal, even if suitable to be re-registered by the time of appeal" should be re-cast to identify which limb was engaged.

NEW CATEGORY SECTION

LIABILITY FOR DELIBERATE FAILURES BY A CONNECTED PARTY

Payments made in the knowledge of deliberate failures to comply

"(1) This section applies to a person who—

- (a) has made a payment under a construction contract, and
- (b) before making a payment, knew or should have known that a connected party had deliberately failed, or would deliberately fail, to comply with a requirement to—
 - (i) deduct a sum under section 61,
 - (ii) pay a sum to the Commissioners under section 62, or
 - (iii) deduct or pay an amount to His Majesty's Revenue and Customs under PAYE regulations.

(2) If this section applies, an officer of Revenue and Customs may determine that the person is liable to pay to the Commissioners an amount equal to 20% of the payment referred to in subsection (1).

(3) In this section, a 'connected party' is—

- (a) another party to the construction contract referred to in subsection (1)(a), or
- (b) a party to another construction contract relating to the same construction operations as the construction contract referred to in subsection (1)(a)." [\(FA 2004, s.62A\)](#)

- "Knew or should have known"

The formula is that of the *Kittel* line in VAT, and the same evidential territory should be expected: what the payer actually knew, what enquiries a reasonable payer in its position would have made, and whether the only reasonable explanation for the arrangement was that the connected party would default. The reach of "connected party" is wide — it is not confined to the payer's own counterparty but extends to any party to any construction contract relating to the same construction operations.

Returns made in the knowledge of deliberate failures to comply

"(1) This section applies to a person who—

- (a) makes a return which treats a sum as deducted and paid on account of the person's liabilities under section 62(2) or (3), and
- (b) before doing so, knew or should have known that the sum—
 - (i) had not been deducted, or
 - (ii) had deliberately not been, or would deliberately not be, paid on account of the person's liabilities.

(2) If this section applies, an officer of Revenue and Customs may determine that the person is liable to pay to the Commissioners an amount equal to the sum which the return treats as paid on account of the person's liabilities." [\(FA 2004, s.62B\)](#)

Penalty

"(1) A person is liable to a penalty not exceeding 30% of any amount that they are determined to be liable to pay under section 62A (payments made in the knowledge of deliberate failures to comply) or 62B (returns made in the knowledge of deliberate failures to comply).

(2) A penalty under this section may not be determined more than three years after the date on which the determination under section 62A or 62B becomes final.

(4) Section 103(4) TMA 1970 (time limits) does not apply to a penalty under this section." (FA 2004, s.72A)

- Commencement

ss.62A to 62C and ss.72A to 72C were inserted by FA 2026, s.220 with effect from 6 April 2026. Officer liability is dealt with by s.72B and appeals by s.72C.

FINDING 25 — REPLACES THE BARE CROSS-REFERENCE AT "COMPLIANCE TEST"

- VAT added to the test from 6 April 2024

FA 2024, s.35 inserted into each of paras 4, 8 and 12 of Sch 11 a new obligation:

"(v) to account for or pay VAT as required by or under the Value Added Tax Act 1994, and" (FA 2004, Sch 11, paras 4, 8 and 12)

The amendment applies to applications for gross payment status made on or after 6 April 2024 and to registrations in effect on or after that date. VAT non-compliance occurring before 6 April 2024 is carved out of cancellation determinations by FA 2024, s.35(5). SI 2024/308 provides that minor VAT compliance failures do not cause refusal or removal, and removes most payments by commercial landlords to tenants for construction work from the scope of the scheme.

- Cancellation ground broadened

FA 2024, s.35 also broadened s.66 by replacing "any such provision" with "an obligation arising under or in connection with any provision of this Chapter or of regulations made under it", and extending para (b) to fraudulently incorrect returns or information given in connection with PAYE regulations, self assessment returns and VAT.

Two drafting checks. s.72A(3) is omitted above because the version I have reads "any appeal or final appeal" where "further appeal" is expected — a likely conversion slip, and not worth publishing until confirmed. There is also no subsection (8) in s.66 as I have it; s.220 appears to have omitted it.

8a · U3 Repayment supplement

NEW SCOPE SECTION

At the head of the chapter, before "Right to supplement"

Do this. Add the section below. The full fix is a new chapter on repayment interest, which is parked — but this alone stops the chapter misleading anyone, because a reader who is told the regime is repealed and where to look next is not misled even before the replacement exists.

NEW OPENING SECTION

Scope of this chapter

- Repealed for VAT periods beginning on or after 1 January 2023

The VAT repayment supplement in VATA 1994, s.79 was repealed by FA 2021, Sch 29 and replaced by repayment interest under FA 2009, s.102 and Sch 54, in relation to prescribed accounting periods beginning on or after 1 January 2023. This chapter states the law as it applies to earlier periods, which remain in issue in appeals and claims.

The repayment interest rate is set by regulations under FA 2009, s.103 as the Bank of England base rate less 1%, subject to a minimum of 0.5%. It was not altered when the late payment rate was increased from base rate plus 2.5% to base rate plus 4% with effect from 6 April 2025 (SI 2025/386), so the differential between the two is now 5 percentage points.

Also. The heading at U2, "No interest where repayment supplement applicable", should be qualified — the two do not overlap, because the supplement applies to periods beginning before 1 January 2023 and repayment interest to periods beginning on or after that date.

9 · A10 Tax agents' duty of care — holding entry

COMMENCES TUESDAY 18 AUGUST 2026

Add at the head of A10, pending the full chapter

Do this. The full chapter is parked pending FA 2026 Part 7. But the first tranche commences in three days and the site says nothing, so a holding entry is worth publishing now. Everything below is commentary, not quotation, so nothing here is waiting on the statute.

HOLDING ENTRY

REGISTRATION OF TAX ADVISERS

The prohibition

A person who acts as a tax adviser must be registered with HMRC. An unregistered adviser is prohibited from interacting with HMRC in relation to a client's tax affairs. The UK tax advice market was previously unregulated at the point of entry: HMRC could decline to deal with a particular agent in practice, but had no statutory gatekeeping power over who might act.

[FA 2026, Part 7, Chapter 1 \(ss.223 - 249\) and Sch 20](#)

Commencement

- Tranches under SI 2026/807

Date	Advisers caught
14 July 2026	For the purpose of making regulations under s.247
18 August 2026	Advisers holding an Agent Services Account, and any adviser not within a later tranche
18 November 2026	Advisers with no ASA but with a self assessment or corporation tax account
18 February 2027	Payroll-only advisers
1 April 2027	Advisers carrying on FSMA-regulated activities, and those whose clients are substantially group undertakings doing so

- Transitional treatment for existing ASA holders

An adviser holding an Agent Services Account immediately before 18 August 2026 is treated as registered from that date, so no application is required in order to continue acting. The practical exposure falls on advisers without an ASA, and on those who assume the transitional provision reaches further than it does. Exceptions are contained in Sch 20 and in SI 2026/815, which is in force from 17 August 2026.

Enforcement

Registration conditions include tax compliance and anti-money laundering registration. Enforcement is by suspension (s.232), compliance notices (s.233), penalties (ss.234 and 235), ineligibility orders (ss.236 and 237), a duty to notify clients (s.238) and publication (s.246), with review and appeal rights under s.244.

- Distinct from the sanctions for sanctionable conduct

Registration is a gateway control. It sits alongside, and is distinct from, the sanctions for sanctionable conduct in FA 2012, Sch 38 (as amended by FA 2026, s.250 and Sch 22 from 1 April 2026), the penalties for enablers of defeated avoidance in F(No.2)A 2017, Sch 16, and the professional bodies' own disciplinary jurisdictions.

[See L7: Representatives](#)

13 · V12 PAYE — umbrella companies

NEW SECTION

After the existing material on the employer's obligations

Do this. Add the section below, and a cross-reference at V2 (Collection from third parties): "*Joint and several liability of parties in a labour supply chain: see V12.*" In force for payments made on or after 6 April 2026.

NEW SECTION

UMBRELLA COMPANIES

Joint and several liability

"(1) Subsection (2) applies if—

(a) an individual ('the worker') personally provides services, or enters into arrangements with a view to personally providing services, to another person ('the client'),

(b) the worker is employed by a third person ('the umbrella company')—

(i) that carries on a business (whether or not with a view to profit and whether or not in conjunction with any other business) of supplying labour, and

(ii) that is not a company in which the worker has a material interest, and

(c) the umbrella company arrangements conditions are met.

(2) Each relevant party (see section 61Z) is, along with the umbrella company, jointly and severally liable to pay any amount payable, in accordance with the PAYE provisions, by the umbrella company in relation to a qualifying umbrella company payment.

(3) A 'qualifying umbrella company payment' means a payment made in respect of the employment of the worker to the extent that it is not in respect of the provision of services to a person other than the client.

(4) The umbrella company arrangements conditions are that—

(a) there is a contract between the umbrella company and—

(i) the client, or

(ii) another person,

(b) under or in consequence of the contract—

(i) the services are provided, or

(ii) the umbrella company is paid, or otherwise provided with consideration, for the services, and

(c) if the contract is not between the umbrella company and the client—

(i) there is a contract between the client and another person,

(ii) the provision of the services or of payment or other consideration for the services is also a consequence of that other contract (whether directly or as a result of a series of contracts involving other persons)."

[\(ITEPA 2003, s.61Y\)](#)

Relevant parties

"(1) If the contract referred to in subsection (4)(a) of section 61Y is between the umbrella company and a person other than the client, the person referred to in subsection (4)(c)(i) of that section is a relevant party.

(2) The client is a relevant party if—

(a) the contract referred to in subsection (4)(a) of that section is between the umbrella company and the client, or

(b) the person referred to in subsection (4)(c)(i) of that section—

(i) is connected with the umbrella company, or

(ii) is non-UK resident.

(3) In a case where—

(a) both the client and the person referred to in subsection (4)(c)(i) of section 61Y are non-UK resident,

(b) the provision of the services or payment or other consideration for the services is a consequence of a series of contracts involving other persons (other than the worker), and

(c) at least one of those persons is UK resident,

the person who is UK resident and is closest, by reference to that series of contracts, to the client is a relevant party." [\(ITEPA 2003, s.61Z\)](#)

Liability attaches first to the agency nearest the client. The client itself is drawn in where it contracts directly with the umbrella company, or where the intervening person is connected with the umbrella company or is non-UK resident. Where the chain is wholly offshore apart from one UK participant, that participant is the relevant party. The practical effect is that HMRC's recourse no longer ends with an umbrella company that has been dissolved.

- Material interest

A company in which the worker has a material interest — broadly, more than 5% of the ordinary share capital, of distributions, or of assets on a winding up — is outside the definition of an umbrella company. But the worker is treated as not having a material interest where the interest results, to any extent, from arrangements a main purpose of which is to prevent the joint and several liability arising.

- Commencement

Chapter 11 of Part 2 ITEPA 2003 was inserted by FA 2026, s.24 and applies in relation to payments made on or after 6 April 2026. Purported umbrella companies are dealt with by s.61Z1, and the duty to disclose to persons made liable by s.61Z2.

16

X9 Special circumstances and suspension — re-attribute Cox

Do this. The page cites *Cox v. HMRC* [2024] UKFTT 510 (TC), *Judge Gemmell* in three places. That decision went up. Re-attribute all three to [Philip and Debra Cox v. HMRC](#) [2026] UKUT 7 (TCC) — the first Upper Tribunal authority on suspension conditions — and add the two sub-points below. The substantive treatment of one-off errors on the page is already balanced, so nothing there needs correcting.

NEW SUB-POINTS

- Conditions need not target a "similar" inaccuracy

"Further" in Sch 24, para 14(3) means an additional penalty for careless inaccuracy that might arise in the future, not a penalty for an inaccuracy similar to the original one. The existing heading "- Link to avoiding similar inaccuracies just a factor" should be re-cast accordingly. A one-off error is not automatically unsuitable for suspension, although the nature of the error remains relevant to the exercise of the discretion; the existing sub-points sourced to *Fane*, *Testa* and *Eastman* should be read subject to that.

- Reform in prospect

HMRC's summary of responses on behavioural penalties reform, published 26 November 2025, records an intention to replace suspension with a warning for a first careless inaccuracy. Respondents were divided. No draft legislation has been published and no implementation date given, but if enacted this chapter will need rewriting and *Cox* will become a transitional authority.

A quotation from the Upper Tribunal would sit better than the commentary above — that is on the list of judgments I still need.

18

X3 New penalties for no return — scope and commencement

Do this. Add the section below at the head of the chapter, before "POINTS SYSTEM". The chapter sets out the mechanics in detail but never says which taxes are within the regime or from when — the first thing a reader needs.

NEW OPENING SECTION

Scope and commencement

FA 2021, Sch 24 is commenced tax by tax by appointed day regulations. It does not apply generally.

Tax	Status	From
VAT	In force	Prescribed accounting periods beginning on or after 1 January 2023 (SI 2022/1278)
Income tax / CGT — MTD volunteers	In force	6 April 2024, for returns and payments for 2024-25 onwards; trustees and partnerships excluded (SI 2024/440)
Income tax / CGT — MTD mandated	In force	From the tax year the taxpayer joins MTD; mandation began April 2026
Income tax / CGT — outside MTD	Not commenced	FA 2009, Sch 55 continues to apply
Corporation tax	Not commenced	FA 1998, Sch 18 continues to apply

- Sch 25 not commenced for VAT

The penalty for deliberately withholding information by failing to make a return, in FA 2021, Sch 25, was not commenced for VAT. A VAT case in which no return is delivered continues to be dealt with under FA 2007, Sch 24 and FA 2008, Sch 41. The DELIBERATELY WITHHOLDING INFORMATION section of this chapter should be marked accordingly.

[See X4: Penalties for late return, for the taxes still within FA 2009, Sch 55](#)

26

Penalties Part — slugs and numbering

Do this. Site configuration rather than text.

1. Move "Other penalties" off `/1-penalties-general` to a slug of its own — `/5-other-penalties` — with a redirect.
2. Move "Penalties (general)" from `/1-penalties-general-1` to `/1-penalties-general`, with a redirect.
3. Settle on one numbering scheme. Two are live: navigation says V1 to V8, body titles say X1, X3, X4, X5, X7, X8, and "V7" currently denotes two different pages depending which you read. The static rebuild uses the X series throughout.
4. Same defect at `/2-offshore-activities-offences`, which serves "Y1. Fraud offences".

If the static rebuild in the git repository is going to be published, most of this resolves itself — the rebuild names each file from its own number and title. It may be more efficient to fix the numbering there than on the live site.

30, 31, 32

Three two-minute fixes

30. X6 Penalties for inaccuracy

Read [Delphi Derivatives Limited v. HMRC \[2026\] UKUT 21 \(TCC\)](#) for "[2026] UKUT 21 (TC)". TCC is the Tax and Chancery Chamber; TC is the First-tier Tribunal Tax Chamber.

31. X10 Follower notices

Read [Perrin v. HMRC \[2018\] UKUT 156 \(TCC\)](#) for "Perrin v HMRC UKUT 156 (TCC)". The year is missing. Cited in full at A3.

32. X3 and X4

Both state the reasonable excuse test from the statute with no authority and no cross-reference. X5 handles it correctly, closing its reasonable excuse section with a link. Add the same line to each:

[See A3: Reasonable excuse](#)

Parked — and what releases each

Seventeen items, each against the single thing that would unblock it. Every file in the Legislation folder is currently an iCloud placeholder.

#	Chapter	Waiting on
4	X7 DOTAS penalties	FA 2004 ss.315–315E — the penalty table and s.315B on who determines. The biggest single gap; the page currently states the opposite of the law.
8b	New chapter U2A Repayment interest	FA 2009 s.102 and Sch 54; FA 2021 Sch 29; SI 2011/2446
9	Full chapter on adviser registration	FA 2026 ss.223–249 and Sch 20 (holding entry published in the meantime)
10	X5 Penalties for late payment	FA 2021 Sch 26 paras 4–18 and para 17A; SI 2025/589
11	E6 DOTAS / new promoters chapter	FA 2026 ss.159–217
12	B1 MTD for income tax	F(No.2)A 2017 s.60 and Sch 14; SI 2021/1076; FA 2026 ss.256–257
14	X1 Penalties (general)	<i>Sintra Global</i> , <i>CF Booth</i> , the Art 6 citations; TMA 1970 s.100A; FA 2007 Sch 24 para 20
15	X2 Burden of proof	<i>Sintra Global</i> and <i>James Hall</i>
17	H1 Statutory clearances (empty page)	FA 2026 ss.267–274, and a list of the existing statutory clearance provisions
19	V7 Directors' disqualification	CDDA 1986 ss.8ZF and 8ZG; FA 2024 Sch 13 commencement
20	Y4 Failure to prevent fraud	ECCTA 2023 ss.199–206 and Sch 13
21	I13 Automatic exchange of information	SI 2025/744; SI 2015/878; SI 2023/817; SI 2023/38
22	I8 Ongoing data reporting	FA 2026 s.255 and Sch 23
23	Sanctionable conduct of tax agents	FA 2012 Sch 38 as amended by FA 2026 Sch 22
24	Penalties Part — regimes with no home	A triage decision from you on which belong in Part V
27	Q22 Evidence from abroad	The June 2025 Practice Statement (link can be repointed now; the £150 fee wording is what I lack)
28, 29	UT remote guidance; ADR costs warning	The June 2026 UT guidance; the ADR Practice Statement

15 August 2026. Everything in this tranche rests on text I have read, or on effects that are certain. Where a quotation's surrounding words come from the site's existing text rather than from a consolidated source, I have said so on the page.